CONFIDENTIAL — FORECAST — FOR DISCUSSION · NOT LEGAL ADVICE

The entities, the IP position, and the work with counsel. Stated as it stands, and as it is planned.

Recorded facts come first. Counsel's advice is summarized, not restated more strongly than given. Planned steps are labelled as plans. This page is not legal advice and does not certify any current docket or registry state.

1 · ENTITIES AS THEY STAND

Entity	Form	Status
EnergyWave, Inc.	Delaware C corporation	Formation in progress with K&L Gates LLP (October 2026): bylaws, certificate of incorporation, organizational consent and EIN application. On formation it holds the IP, employs the team and receives the raise. The certificate and file number are added here on formation.
McLean Capital Development LLC	Wyoming LLC, Filing ID 2025-001612265	Filed 12 February 2025; active and in good standing (registry, 8 October 2026). Ian Franklin McLean holds 100 % of the membership interests as President and Sole Member (secretary's certificate, 23 June 2026). Applicant of record for xTech Search 10.
McLean Companies LLC	California LLC (the founder's existing company)	Letterhead on the August 2026 white paper; transitional service provider to EnergyWave under a reimbursement and assignment agreement to be written with counsel; related-party terms disclosed.
GovThink Institute	501(c)(3), proposed	A proposed independent policy nonprofit, not yet filed and with no formal tie to EnergyWave. Its August 2026 planning package proposes an independent-majority board, a conflict policy, no preferential access or IP flow to EnergyWave, and evaluation on equal published terms.
"EnergyWave Inc." (1988), Delaware file #2149394	Prior entity of the same name	Counsel has been asked to investigate whether it is connected to the founder; no ownership is asserted.

> **Financing status (15 October 2026).** No SAFE has been executed and no outside funding has been raised. The October competition entry recorded approximately $10,000 including founder contributions.

2 · THE PROVISIONAL FILING — RECORDED FACTS

Fact	Support
U.S. Provisional Application No. **63/763,998**, filing date **27 February 2025**, filed by the founder	Indexed provisional record, 9 pp (SHA-256 20552462…bc12): reproduced USPTO missing-parts notice (p. 5) and updated filing receipt mailed 24 June 2025 (p. 8).

Fact	Support
The description filed appears to be a ~220-word essay on “asymmetrical regauging” that defines no device	Embedded Patent Center upload feedback identifies the file; to be confirmed against the Patent Center document list.
A provisional is not examined and becomes abandoned no later than twelve months after filing	USPTO receipt text, p. 8.
The record’s own index: “None claiming this provisional that I know of”	p. 1 — a statement of personal knowledge, not a docket search.

3 · PATENT POSITION — COUNSEL’S ADVICE OF 5 OCTOBER 2026, SUMMARIZED

The 2025 provisional expired on 27 February 2026 without a non-provisional filing, so it cannot support a priority claim. Emailing concepts to inventors and others is not a public disclosure; website material that has been public for more than a year cannot form the basis of an application. At concept stage little has been conceded, because patents protect how an invention operates, not concepts. The path forward: an invention record; a coversheet provisional application (approximately $2,000) filed in the inventors’ names and assigned to the company on formation; a non-provisional application (typically $10,000–$20,000) as the work matures. Counsel has filed no application to date; a domain and know-how assignment agreement follows formation.

4 · AGREEMENTS UNDER COUNSEL’S REVIEW

A 2025 intellectual-property assignment agreement and non-disclosure agreement between the founder, as a contractor, and a third-party company, together with a related rider, are under counsel’s review against the EnergyWave work so that the company’s IP position is documented cleanly on formation. Until that review concludes, no document here states that the company’s intended IP is unencumbered — and none states that it is encumbered.

5 · WORKPLAN WITH COUNSEL

- **Formation:** the Delaware C corporation (in progress); the 1988 entity of the same name; EIN and bank account in time for SAM.gov registration.
- **IP:** invention record and coversheet provisional; assignment of the energywave.ai domain and existing work product from the founder and McLean Companies on formation; review of the 2025 third-party agreements.
- **Fundraising:** the securities exemption for each round (506(b) or 506(c)); escrow mechanics for the gate tranches; CFIUS / FIRRMA considerations.
- **Nonprofit:** GovThink formation, exemption application and determination; private-benefit and inurement safeguards.
- **Security posture:** trade-secret program; patent versus trade secret by compartment; export classification; CPI / AT obligations under federal funding; NDAs and departure procedures.
- **People:** advisor and team agreements, consents to be named, a 409A valuation before any option grant, the co-founder’s ZPEPG boundary.

Basis: counsel’s messages of 29 September and 5 October 2026; the indexed provisional record; the Wyoming registry and secretary’s certificate; the GovThink planning package (August 2026); the founder’s statements of 14–16 October 2026.